

PART ONE

Origins



NOTHING IS MORE SURPRISING to those, who consider human affairs with a philosophical eye, than to see the easiness with which the many are governed by the few; and to observe the implicate submission with which men resign their own sentiments and passions to those of their rulers. When we enquire by what means this wonder is brought about, we shall find, that as Force is always on the side of the governed, the governors have nothing to support them but opinion. 'Tis therefore, on opinion only that government is founded; and this maxim extends to the most despotic and most military governments, as well as to the most free and most popular.

—David Hume, "Of the First Principles of Government," *Essays and Treatises on Several Subjects*, 1758 edition

WE MAY PERHAPS QUESTION today whether force is *always* on the side of the governed or even whether it always has been, but by and large Hume's observation commands assent. Put it another way, all government rests on the consent, however obtained, of the governed. And over the long run mere force, even if entirely at the disposal of the governing few, is not a sufficient basis for inducing consent. Human beings, if only to maintain a semblance of self-respect, have to be persuaded. Their consent must be sustained by opinions.

The few who govern take care to nourish those opinions. No easy task, for the opinions needed to make the many submit to the few are often at variance with observable fact. The success of government thus requires the acceptance of fictions, requires the willing suspension of disbelief, requires us to believe that the emperor is clothed even though we can see that he is not. And, to reorder Hume's dictum, the maxim extends to the most free and most popular governments as well as to the most despotic and most military. The popular governments of Britain and the United States rest on fictions as much as the governments of Russia and China.

Government requires make-believe. Make believe that the king is divine, make believe that he can do no wrong or make believe that the voice of the people is the voice of God. Make believe that the people have a voice or make believe that the representatives of the people are the people. Make believe that governors are the servants of the people. Make believe that all men are equal or make believe that they are not.

The political world of make-believe mingles with the real world in strange ways, for the make-believe world may often mold the real one. In order to be viable, in order to serve its purpose, whatever that purpose may be, a fiction must bear some resemblance to fact. If it strays too far from fact, the willing suspension of disbelief collapses. And conversely it may collapse if facts stray too far from the fiction that we want them to resemble. Because fictions are necessary, because we cannot live without them, we often take pains to prevent their collapse by moving the facts to fit the fiction, by making our world conform more closely to what we want it to be. We sometimes call it, quite appropriately, reform or reformation, when the fiction takes command and reshapes reality.

Although fictions enable the few to govern the many, it is not only the many who are constrained by them. In the strange commingling of political make-believe and reality the governing few no less than the governed many may find themselves limited—we may even say reformed—by the fictions on which their authority depends. Not only authority but liberty too may depend on fictions. Indeed liberty may depend, however deviously, on the very fictions that support authority. That, at least, has been the case in the Anglo-American world; and modern liberty, for better or for worse, was born, or perhaps we should say invented, in that world and continues to be nourished there.

Because it is a little uncomfortable to acknowledge that we rely so heavily on fictions, we generally call them by some more exalted name. We may proclaim them as self-evident truths, and that designation is not inappropriate, for it implies our commitment to them and at the same time protects them from challenge. Among the fictions we accept today as self-evident are those that Thomas Jefferson enshrined in the Declaration of Independence, that all men are created equal and that they owe obedience to government only if it is their own agent, deriving its authority from their consent. It would be difficult, if not impossible, to demonstrate these propositions by factual evidence. It might be somewhat easier, by the kind of evidence we usually require for the proof of any debatable proposition, to demonstrate that men are not created equal and that they have not delegated authority to any government. But self-evident propositions are not debatable, and to challenge these would rend the fabric of our society.

It is not the purpose of this book to challenge them, and my use of the word fiction has no such intention. I have been troubled by the pejorative connotations attached to the word, but I have been unable

to find a better one to describe the different phenomena to which I have applied it. I can only hope that readers who persevere to the end of the book will recognize that the fictional qualities of popular sovereignty sustain rather than threaten the human values associated with it. I hope they will also recognize that I do not imply deception or delusion on the part of those who employed or subscribed to the fictions examined here, fictions in which they *willingly* suspended disbelief. My purpose is not to debunk, but to explore the wonder that Hume points to, the fact that most of us submit willingly to be governed by a few of us. The opinions to which Hume attributes this wonder are doubtless of many kinds, but I am concerned with those that seem to defy demonstration. I prefer to call them fictions rather than self-evident truths, because what we accept as self-evident today did not seem so three or four centuries ago.

At the time when England's American colonies were founded, the fictions that sustained government—and liberty—were almost the reverse of those we accept today. Englishmen of the sixteenth and early seventeenth century affirmed that men were created unequal and that they owed obedience to government because the Creator had endowed their king with his own sacred authority. These propositions too were fictional, requiring suspension of disbelief, defying demonstration as much as those that took their place. How then did the one give way to the other? How did the divine right of kings give way to the sovereignty of the people? And how did the new fictions both sustain government by the few and restrain the few for the benefit of the many? In other words, how did the exercise and authentication of power in the Anglo-American world as we know it come into being? These are the questions for which I have sought answers.

The search begins with the old fiction, the divine right of kings. Since we have long since given up suspending our disbelief in this one, we should have no difficulty in perceiving its fictional qualities. It enjoyed, nevertheless, a longer duration than the sovereignty of the people has yet attained. In examining its operation in the years just before its collapse, we may gain some initial insights into the way political fictions can both sustain and limit the authority of government.